

**U.S. Bankruptcy Court
Southern District of New York (Manhattan)
Bankruptcy Petition #: 14-10271-mkv**

Assigned to: Judge Mary Kay Vyskocil
Chapter 7
Involuntary

Date filed: 02/06/2014
Date terminated: 02/01/2019
Debtor dismissed: 01/13/2016

Debtor disposition: Dismissed for Other Reason

Debtor

Matthew N. Murray
144 Franklin St., Apt. No. 1
New York, NY 10013
NEW YORK-NY
SSN / ITIN: xxx-xx-0000

represented by **Tracy L. Klestadt**

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Petitioning Creditor

Wilk Auslander LLP
1515 Broadway
New York, NY 10036
212-981-2300

represented by **Eric J. Snyder**

(See above for address)

Trustee

SARD Trustee

(For Statistical Purposes Only)

U.S. Trustee

United States Trustee

Office of the United States Trustee - NY

Alexander Hamilton Custom House

One Bowling Green, Room 534

New York, NY 10004-1408

(212) 510-0500

Filing Date	#	Docket Text
02/06/2014	1 (2 pgs)	Involuntary Petition (Chapter 7) Against: Matthew N. Murray. Filed by Petitioning Creditor(s): Wilk Auslander LLP. (Snyder, Eric) (Entered: 02/06/2014)
02/06/2014		Receipt of Involuntary Petition (Chapter 7)(14-10271) [misc,826] (306.00) Filing Fee. Receipt number 9924462. Fee amount 306.00. (Re: Doc # 1) (U.S. Treasury) (Entered: 02/06/2014)
02/06/2014	2 (101 pgs; 9 docs)	<i>Affidavit Declaration of Eric J. Snyder in Support of Involuntary Petition</i> (related document(s) 1) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Attachments: # 1 Exhibit Subpoena Responses # 2 Exhibit Email # 3 Exhibit Judgment # 4 Exhibit Settlement Agreement # 5 Exhibit Execution # 6 Exhibit Stipulation # 7 Exhibit Order # 8 Exhibit Appraisal)(Snyder, Eric) (Modified on 2/11/2014 to Attach Correct PDF File RE: Declaration of Eric J. Snyder) (Richards, Beverly). (Entered: 02/06/2014)
02/07/2014	3 (3 pgs)	Amended Involuntary Petition (related document(s) 2 , 1) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Snyder, Eric) (Entered: 02/07/2014)
02/10/2014	4 (2 pgs; 2 docs)	Notice of Case Reassignment From Judge Shelley C. Chapman to Judge Robert E. Gerber. Judge Robert E. Gerber added to the case. (Acosta, Annya). (Entered: 02/10/2014)
02/11/2014	5 (1 pg)	<i>Summons in an involuntary case against Matthew N. Murray</i> filed by Clerk's Office of the U.S. Bankruptcy Court. (Bickerstaff, Chris) (Entered: 02/11/2014)
02/12/2014	6 (1 pg)	Affidavit of Service (related document(s) 2 , 5 , 3) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Snyder, Eric) (Entered: 02/12/2014)
02/12/2014	7 (2 pgs)	Certificate of Mailing Re: Notice of Case Reassignment (related document(s) (Related Doc # 4)) . Notice Date 02/12/2014. (Admin.) (Entered: 02/13/2014)
03/06/2014	8 (1 pg)	So Ordered Stipulation and Order Signed on 3/6/2014 Extending Alleged Debtor's Time to Answer the

		Involuntary Petition or Otherwise Plead. (Nulty, Lynda) (Entered: 03/06/2014)
03/18/2014	9 (2 pgs)	Motion to Dismiss Involuntary Petition filed by Brendan M. Scott on behalf of Matthew N. Murray with hearing to be held on 4/30/2014 at 09:45 AM at Courtroom 523 (REG) Responses due by 4/23/2014,. (Scott, Brendan) (Entered: 03/18/2014)
03/18/2014	10 (33 pgs)	Memorandum of Law <i>in Support of Motion to Dismiss Involuntary Petition</i> (related document(s) 9) filed by Brendan M. Scott on behalf of Matthew N. Murray. (Scott, Brendan) (Entered: 03/18/2014)
03/18/2014	11 (25 pgs; 5 docs)	Declaration of Tracy L. Klestadt <i>in Support of Motion to Dismiss Involuntary Petition</i> (related document(s) 9) filed by Brendan M. Scott on behalf of Matthew N. Murray. (Attachments: # 1 Exhibit # 2 Exhibit # 3 Exhibit # 4 Exhibit) (Scott, Brendan) (Entered: 03/18/2014)
03/18/2014	12 (95 pgs; 11 docs)	Affidavit of Matthew N. Murray <i>in Support of Motion to Dismiss Involuntary Petition</i> (related document(s) 9) filed by Brendan M. Scott on behalf of Matthew N. Murray. (Attachments: # 1 Exhibit # 2 Exhibit # 3 Exhibit # 4 Exhibit # 5 Exhibit # 6 Exhibit # 7 Exhibit # 8 Exhibit # 9 Exhibit # 10 Exhibit) (Scott, Brendan) (Entered: 03/18/2014)
03/21/2014	13 (2 pgs)	Certificate of Service (related document(s) 11 , 9 , 10 , 12) filed by Brendan M. Scott on behalf of Matthew N. Murray. (Scott, Brendan) (Entered: 03/21/2014)
04/18/2014	14 (6 pgs)	Motion to Seal (related document(s) 9) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Snyder, Eric) (Entered: 04/18/2014)
04/18/2014	15 (273 pgs; 9 docs)	Declaration of Eric J. Snyder <i>in Support of Petitioner's Motion to Seal</i> (related document(s) 14) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Attachments: # 1 Exhibit Alleged Debtor's Motion to Dismiss (1 of 3) # 2 Exhibit Alleged Debtor's Motion to Dismiss (1 of 2) # 3 Exhibit Alleged Debtor's Motion to Dismiss (3 of 3) # 4 Exhibit Proposed Order # 5 Exhibit Stipulation and Order # 6 Exhibit Judgment Debtor's Objections and Responses # 7 Exhibit Judgment Debtor's Objections and Responses # 8 Exhibit Petitioner's Memorandum of Law) (Snyder, Eric) (Entered: 04/18/2014)
04/22/2014	16 (22 pgs)	Case Management Order Signed on 4/22/2014. (Nulty, Lynda) (Entered: 04/22/2014)
04/22/2014	17 (6 pgs)	Amended Motion to Seal (related document(s) 14 , 9) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Snyder, Eric) (Entered: 04/22/2014)
04/22/2014	18 (274 pgs; 9 docs)	Amended Declaration of Eric J. Snyder <i>in Support of Petitioner's Amended Motion to Seal</i> (related document(s) 17) filed by Eric J. Snyder on behalf of Wilk

		Auslander LLP. (Attachments: # 1 Exhibit Alleged Debtor's Motion to Dismiss (1 of 3) # 2 Exhibit Alleged Debtor's Motion to Dismiss (2 of 3) # 3 Exhibit Alleged Debtor's Motion to Dismiss (3 of 3) # 4 Exhibit Proposed Order # 5 Exhibit Stipulation and Order # 6 Exhibit Judgment Debtor's Objections and Responses # 7 Exhibit Judgment Debtor's Objections and Responses # 8 Exhibit Petitioning Creditor's Memorandum of Law) (Snyder, Eric) (Entered: 04/22/2014)
04/29/2014	19 (45 pgs)	Memorandum of Law <i>in Opposition to Alleged Debtor's Motion to Dismiss the Involuntary Petition</i> (related document(s) 9) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Snyder, Eric) (Entered: 04/29/2014)
04/29/2014	20 (156 pgs; 13 docs)	Declaration of Eric J. Snyder in Support of Petitioning Creditor's Opposition to Alleged Debtor's Motion to Dismiss the Involuntary Petition (related document(s) 9) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Attachments: # 1 Exhibit FINRA Award # 2 Exhibit Liability Ruling # 3 Exhibit Judgment # 4 Exhibit Assignment # 5 Exhibit Redacted Settlement Agreement # 6 Exhibit Information Subpoena Responses # 7 Exhibit Execution # 8 Exhibit Information Subpoena Responses # 9 Exhibit Information Subpoena Responses # 10 Exhibit E-mail Response # 11 Exhibit Stipulation and Order # 12 Exhibit Order and Settlement Agreement) (Snyder, Eric) (Entered: 04/29/2014)
05/08/2014	21 (3 pgs)	Discovery and Pre-Trial Stipulation Signed on 5/8/2014. (Nulty, Lynda) (Entered: 05/08/2014)
05/20/2014	22 (5 pgs)	Stipulated Protective Order Signed on 5/20/2014. (Nulty, Lynda) (Entered: 05/20/2014)
06/06/2014	23 (23 pgs)	Memorandum of Law <i>in Reply and in Further Support of Motion Seeking an Order Pursuant to 11 U.S.C. §§ 303(i) and 305(a), 28 U.S.C. § 1334(c) and Rule 1003(a) of the Federal Rules of Bankruptcy Procedure for an Order Dismissing the Involuntary Petition and Granting Judgment Against the Petitioning Law Firm in the Amount of Alleged Debtor's Costs, Attorneys Fees and Damages</i> (related document(s) 11 , 20 , 9 , 10 , 19 , 12) filed by Tracy L. Klestadt on behalf of Matthew N. Murray. (Klestadt, Tracy) (Entered: 06/06/2014)
06/06/2014	24 (19 pgs; 2 docs)	Affidavit of Matthew N. Murray in Support of Motion Seeking an Order Pursuant to 11 U.S.C. §§ 303(i) and 305(a), 28 U.S.C. § 1334(c) and Rule 1003(a) of the Federal Rules of Bankruptcy Procedure for an Order Dismissing the Involuntary Petition and Granting Judgment Against the Petitioning Law Firm in the Amount of Alleged Debtor's Costs, Attorneys' Fees and Damages (related document(s) 23) filed by Tracy L. Klestadt on behalf of Matthew N. Murray. (Attachments: # 1 Exhibit A)(Klestadt, Tracy) (Entered: 06/06/2014)
06/06/2014	25 (3 pgs)	Affidavit of Service (related document(s) 23 , 24) filed by Tracy L. Klestadt on behalf of Matthew N. Murray. (Klestadt, Tracy) (Entered: 06/06/2014)

06/11/2014	<u>26</u> (8 pgs)	Memorandum of Law <i>in Sur-Reply to Alleged Debtor's Memorandum of Law in Reply and in Further Support of Motion Seeking an Order Dismissing the Involuntary Petition and Granting Judgment Against Petitioning Creditor in the Amount of Alleged Debtor's Costs, Attorneys' Fees and Damages</i> (related document(s) <u>23</u>) filed by Eric J. Snyder on behalf of Matthew N. Murray. (Snyder, Eric) (Entered: 06/11/2014)
07/10/2014	<u>27</u> (34 pgs)	Transcript regarding Hearing Held on 6/30/2014 2:02PM RE: Motion Filed by Alleged Debtor to Dismiss This Involuntary Petition. Remote electronic access to the transcript is restricted until 10/8/2014. The transcript may be viewed at the Bankruptcy Court Clerks Office. [Transcription Service Agency: VERITEXT REPORTING COMPANY.]. (See the Courts Website for contact information for the Transcription Service Agency.). Notice of Intent to Request Redaction Deadline Due By 7/17/2014. Statement of Redaction Request Due By 7/31/2014. Redacted Transcript Submission Due By 8/11/2014. Transcript access will be restricted through 10/8/2014. (Ortiz, Carmen) (Entered: 07/22/2014)
10/20/2015	<u>28</u> (1 pg)	Letter / <i>Notice of Change of Firm Address</i> Filed by Tracy L. Klestadt on behalf of Matthew N. Murray. (Klestadt, Tracy) (Entered: 10/20/2015)
01/13/2016	<u>29</u> (20 pgs)	Decision and Order on Motion to Dismiss Involuntary Petition Signed on 1/13/2016. (related document(s) <u>9</u>) (Nulty, Lynda) (Entered: 01/13/2016)
01/26/2016	<u>30</u> (21 pgs; 2 docs)	Notice of Appeal (related document(s) <u>29</u>) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Attachments: # <u>1</u> Exhibit Decision and Order on Motion to Dismiss Involuntary Petition)(Snyder, Eric) (Entered: 01/26/2016)
01/26/2016		Receipt of Notice of Appeal(14-10271-cgm) [appeal,97] (298.00) Filing Fee. Receipt number 11105009. Fee amount 298.00. (Re: Doc # <u>30</u>) (U.S. Treasury) (Entered: 01/26/2016)
01/26/2016	<u>31</u> (2 pgs)	Civil Cover Sheet from U.S. District Court, Case Number: (related document(s) <u>29</u>) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Snyder, Eric) (Entered: 01/26/2016)
01/27/2016	<u>32</u> (22 pgs; 2 docs)	Notice of Appeal (related document(s) <u>29</u>) filed by Brendan M. Scott on behalf of Matthew N. Murray. (Attachments: # <u>1</u> Exhibit A)(Scott, Brendan) (Entered: 01/27/2016)
01/27/2016		Receipt of Notice of Appeal(14-10271-cgm) [appeal,97] (298.00) Filing Fee. Receipt number 11106604. Fee amount 298.00. (Re: Doc # <u>32</u>) (U.S. Treasury) (Entered: 01/27/2016)
01/27/2016	<u>33</u> (2 pgs)	Civil Cover Sheet from U.S. District Court, Case Number: (related document(s) <u>29</u> , <u>32</u>) filed by Brendan M. Scott on behalf of Matthew N. Murray. (Scott, Brendan) (Entered: 01/27/2016)

01/27/2016	34 (2 pgs)	Statement of <i>Relatedness</i> (related document(s) 33 , 29 , 32 , 31 , 30) filed by Brendan M. Scott on behalf of Matthew N. Murray. (Scott, Brendan) (Entered: 01/27/2016)
02/02/2016	35 (2 pgs)	Civil Cover Sheet from U.S. District Court, Case Number: 1600771 Judge Vernon S. Broderick (related document(s) 30) filed by Clerk's Office of the U.S. Bankruptcy Court. (Lopez, Mary) (Entered: 02/02/2016)
02/02/2016	36 (2 pgs)	Civil Cover Sheet from U.S. District Court, Case Number: 1600789 (related document(s) 32) filed by Clerk's Office of the U.S. Bankruptcy Court. (Lopez, Mary) (Entered: 02/02/2016)
02/09/2016	37 (3 pgs)	Designation of Contents (appellant). <i>and Statement of Issues To Be Presented</i> (related document(s) 31 , 30) filed by Eric J. Snyder on behalf of Wilk Auslander LLP. (Snyder, Eric) (Entered: 02/09/2016)
02/10/2016	38 (2 pgs)	Statement of Issues <i>and Counter-Designation of Record on Appeal</i> (related document(s) 37 , 32 , 30) filed by Brendan M. Scott on behalf of Matthew N. Murray. (Scott, Brendan) (Entered: 02/10/2016)
02/26/2016	39 (2 pgs; 2 docs)	Notice of Transmittal of Record of Appeal. All documents have been filed with the United States District Court for the Southern District of New York. Record of Appeal is Complete and Available Electronically under Civil Case Number 16-cv-00771 assigned to the Honorable Vernon S. Broderick. Check the District Court Docket Sheet for the Briefing Schedule. (related document(s) 30) (Lopez, Mary). (Entered: 02/26/2016)
02/26/2016	40 (2 pgs; 2 docs)	Notice of Transmittal of Record of Appeal. All documents have been filed with the United States District Court for the Southern District of New York. Record of Appeal is Complete and Available Electronically under Civil Case Number 16-cv-00789 assigned to the Honorable Vernon S. Broderick. Check the District Court Docket Sheet for the Briefing Schedule. (related document(s) 32) (Lopez, Mary). (Entered: 02/26/2016)
02/28/2016	41 (2 pgs)	Certificate of Mailing Re: Notice Of Transmittal Of Record Of Appeal To USDC SDNY (related document(s) (Related Doc # 39)) . Notice Date 02/28/2016. (Admin.) (Entered: 02/29/2016)
05/05/2016	42 (2 pgs)	Order of U.S. District Court Judge Vernon Broderick signed on 4/28/2016 re: 32 , stipulation dismissing appeal: Pursuant to Rule 8023 of the F.R.B.P., Mr. Murray hereby dismissed the Murray Appeal, without costs to any Party as against any other Party. (tro) (Entered: 05/05/2016)
04/06/2017	43 (11 pgs)	Order of U.S. District Court Judge Vernon S. Broderick signed on 3/31/2017: For the foregoing reasons, and the reasons stated in the Bankruptcy Court's thorough and well-reasoned decision, the decision is AFFIRMED and the

		case is DISMISSED. (related document(s) 30) (tn) (Entered: 04/06/2017)
02/01/2019		Case Closed. (Lopez, Mary). (Entered: 02/01/2019)

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